

24NNCV01007 24NNCV01007

County: los-angeles

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Department: D

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Case Number: 24NNCV01007 Hearing Date: July 17, 2026 Dept: D

TENTATIVE RULING

Calendar: 8

Date: July 17, 2026

Case No: 24NNCV01007 Trial Date: September 8, 2026

Case Name: Martinez v. Los Angeles Community College District, et al.

MOTION FOR LEAVE TO CONDUCT IME

[CCP § 2032.310]

Moving Party: Defendant, Los Angeles Community College District

Responding Party: Plaintiff, Noah Martinez

RELIEF REQUESTED:

An order granting leave to conduct a neuropsychological examination on Plaintiff.

CAUSES OF ACTION: from Complaint

1) Dangerous Condition of Public Property

SUMMARY OF FACTS:

The Complaint alleges that on October 3, 2023, Noah Martinez ("Plaintiff") was leaving a classroom at East Los Angeles Community College, located at 1301 Avenida Cesar Chavez, Monterey Park, California, when he slipped over a slippery and wet walking surface. The Complaint alleges that Los Angeles Community College District ("Defendant") owned, maintained and controlled the premises.

ANALYSIS:

"Any party may obtain discovery, subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition (including the blood group) of that party or other person is in controversy in the action." (CCP § 2032.020 subd. (a).) "A mental examination conducted under this chapter shall be performed only by a licensed physician, or by a licensed clinical psychologist who holds a doctoral degree in psychology and has had at least five years of postgraduate experience in the diagnosis of emotional and mental disorders." (CCP § 2032.020 subd. (c)(1).)

Where any party seeks to obtain discovery by a physical or mental examination, the party must obtain leave of the court. (CCP § 2032.310, subd. (a).) The motion must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination". (CCP § 2032.310, subd. (b).) The court shall grant the motion only for good cause shown. (CCP § 2032.320, subd. (a).) A showing of good cause generally requires "that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.)

Defendant moves for leave to conduct a neuropsychological examination on Plaintiff. Defendant argues that there is good cause for the examination because Plaintiff's discovery responses state that Plaintiff suffers from "[m]emory loss/difficulty remembering; trouble concentrating/focusing; confusion/disorientation; reduced attention to details; difficulty with language or finding words; changes in mood or behavior." (Kohrs Decl., Ex. 1.) In addition, during his deposition, Plaintiff testified that he has had a hard time focusing and has had memory issues since the incident. (Kohrs Decl., Ex. 2.) Defendant argues that, thus Plaintiff has placed his memory, attention, concentration, executive functioning, and emotional condition in controversy.

The motion specifies the place, manner, conditions, scope and nature of the examination, as well as the identity and specialty of the person who will perform the examination. (Kohrs Decl., Ex. 4.) Thus, the motion satisfies the requirements of CCP section 2032.310, subdivision b.

In the opposition, Plaintiff asserts that Defendant has not demonstrated good cause for the examination. Plaintiff argues that Defendant has already obtained a neurological examination directed to Plaintiff's alleged neurological injuries, which "overlap substantially with the claimed head injury and post-concussive complaints." (Opp., p. 4:9-10.) Plaintiff argues that Defendant has not explained why the prior neurological examination is insufficient to evaluate Plaintiff's neurological and head-injury claims. (Opp., p. 6:8-9.) Lastly, Plaintiff argues that the proposed examination is overbroad and not narrowly tailored. (Opp., pp. 7:25-9:14.)

The Court finds that there is good cause for the examination. "[B]y asserting a causal link between [his] mental distress and [Defendant's] conduct, plaintiff implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress." (Vinson, supra, 43 Cal.3d at p. 840.) Plaintiff's neuropsychological condition has been put at issue in this case. To be sure, placing the issue in controversy is only a threshold issue; the Court must also find good cause to order the mental examination requested. (See Vinson supra, 43 Cal.3d at pp. 841-842.) While a neurological examination is highly complementary to a neuropsychological examination, they assess different brain functions. In addition, the neurologist conducting the neurological exam specifically recommended follow-up neuropsychological testing. Accordingly, there is good cause for the examination and no cumulative burden for the additional testing.

Thus, the motion is GRANTED.

RULING:

Defendant Los Angeles Community College District's Motion for Leave to Conduct IME is GRANTED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

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